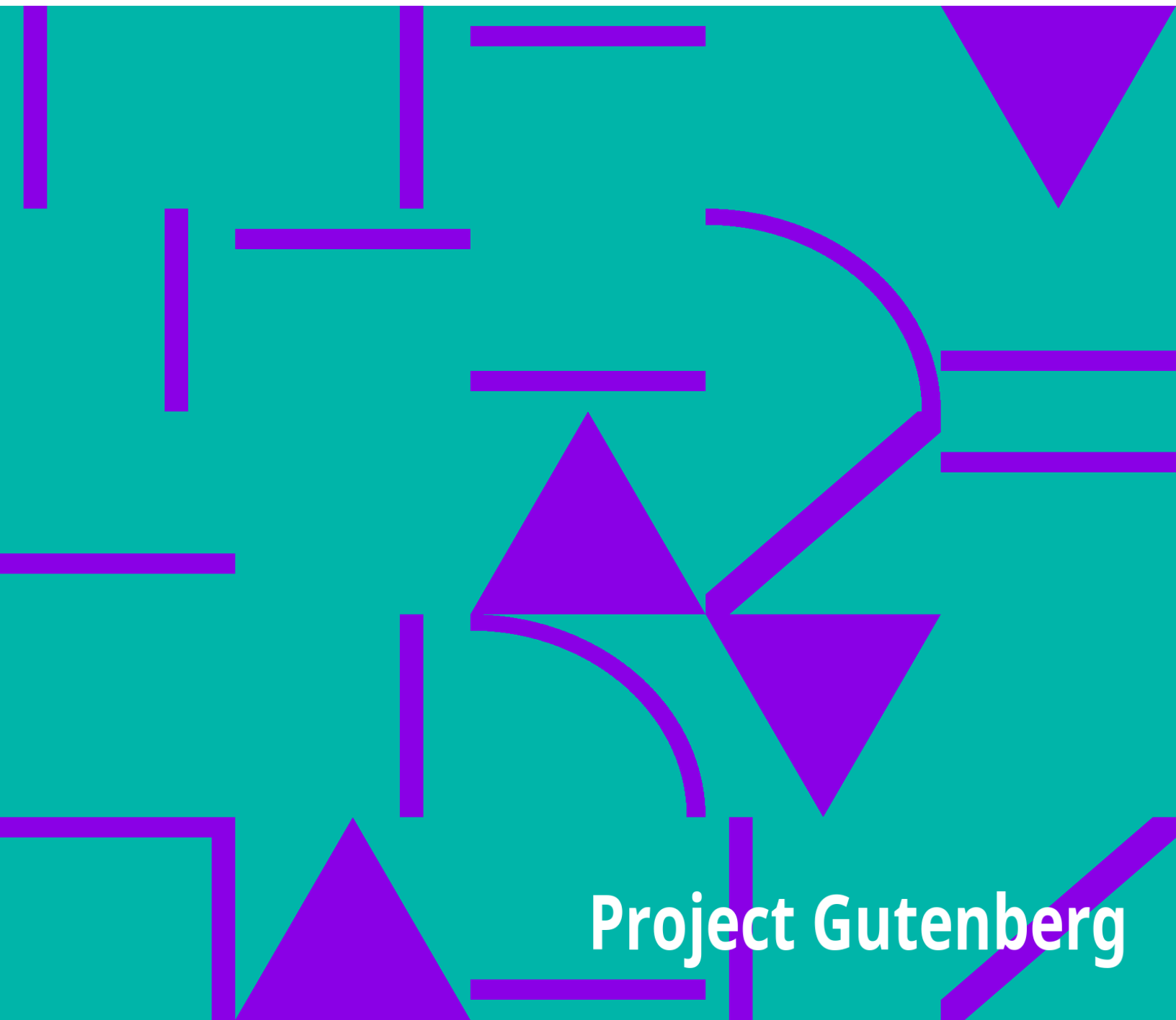


The Sheriff and His Partner

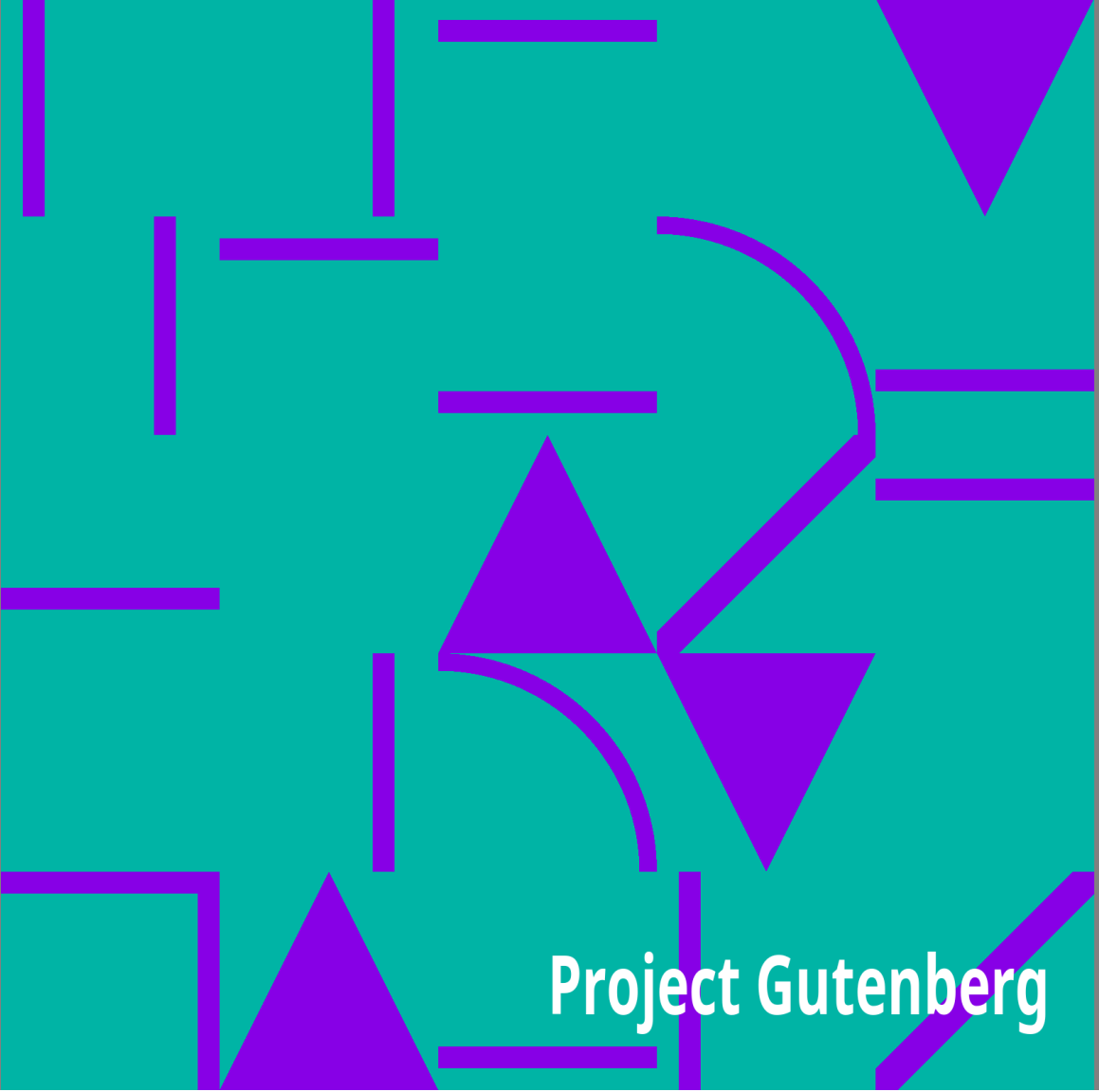
Frank Harris

The background of the lower half of the image is a teal color, overlaid with a complex pattern of purple geometric shapes. These shapes include various sized triangles, rectangles, and curved lines, some of which are solid purple, while others are outlined in purple. The pattern is abstract and modern.

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The Sheriff and His Partner

Frank Harris

An abstract geometric pattern featuring various teal and purple shapes, including triangles, rectangles, and curved lines, arranged in a complex, overlapping design.

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*** START OF THE PROJECT GUTENBERG EBOOK THE SHERIFF
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THE SHERIFF AND HIS PARTNER.

By Frank Harris

One afternoon in July, 1869, I was seated at my desk in Locock's law-office in the town of Kiota, Kansas. I had landed in New York from Liverpool nearly a year before, and had drifted westwards seeking in vain for some steady employment. Lawyer Locock, however, had promised to let me study law with him, and to give me a few dollars a month besides, for my services as a clerk. I was fairly satisfied with the prospect, and the little town interested me. An outpost of civilization, it was situated on the border of the great plains, which were still looked upon as the natural possession of the nomadic Indian tribes. It owed its importance to the fact that it lay on the cattle-trail which led from the prairies of Texas through this no man's land to the railway system, and that it was the first place where the cowboys coming north could find a bed to sleep in, a bar to drink at, and a table to gamble on. For some years they had made of Kiota a hell upon earth. But gradually the land in the neighbourhood was taken up by farmers, emigrants chiefly from New England, who were determined to put an end to the reign of violence. A man named Johnson was their leader in establishing order and tranquillity. Elected, almost as soon as he came to the town, to the dangerous post of City Marshal, he organized a vigilance committee of the younger and more daring settlers, backed by whom he resolutely suppressed the drunken rioting of the cowboys. After the ruffians had been taught to behave themselves, Johnson was made Sheriff of the County, a post which gave him a house and permanent position. Though married now, and apparently "settled down," the Sheriff was a sort of hero in Kiota. I had listened to many tales about him, showing desperate determination veined with a sense of humour, and I often regretted that I had reached the place too late to see him in action. I had little or nothing to do in the office. The tedium of the long days was almost unbroken, and Stephen's "Commentaries" had become as monotonous and unattractive as the bare uncarpeted floor. The heat was tropical, and I was dozing when a knock startled me. A negro boy slouched in with a bundle of newspapers: "This yer is Jedge Locock's, I guess?" "I guess so," was my answer as I lazily

opened the third or fourth number of the "Kiota Weekly Tribune." Glancing over the sheet my eye caught the following paragraph:

"HIGHWAY ROBBERY WITH VIOLENCE.

JUDGE SHANNON STOPPED.

THE OUTLAW ESCAPES. HE KNOWS SHERIFF JOHNSON.

"Information has just reached us of an outrage perpetrated on the person of one of our most respected fellow-citizens. The crime was committed in daylight, on the public highway within four miles of this city; a crime, therefore, without parallel in this vicinity for the last two years. Fortunately our County and State authorities can be fully trusted, and we have no sort of doubt that they can command, if necessary, the succour and aid of each and every citizen of this locality in order to bring the offending miscreant to justice.

"We now place the plain recital of this outrage before our readers.

"Yesterday afternoon, as Ex-Judge Shannon was riding from his law-office in Kiota towards his home on Sumach Bluff, he was stopped about four miles from this town by a man who drew a revolver on him, telling him at the same time to pull up. The Judge, being completely unarmed and unprepared, obeyed, and was told to get down from the buckboard, which he did. He was then ordered to put his watch and whatever money he had, in the road, and to retreat three paces.

"The robber pocketed the watch and money, and told him he might tell Sheriff Johnson that Tom Williams had 'gone through him,' and that he (Williams) could be found at the saloon in Osawotamie at any time. The Judge now hoped for release, but Tom Williams (if that be the robber's real name) seemed to get an afterthought, which he at once proceeded to carry into effect. Drawing a knife he cut the traces, and took out of the shafts the Judge's famous trotting mare, Lizzie D., which he mounted with the remark:

"'Sheriff Johnson, I reckon, would come after the money anyway, but the hoss'll fetch him—sure pop.'

"These words have just been given to us by Judge Shannon himself, who tells us also that the outrage took place on the North Section Line, bounding Bray's farm.

“After this speech the highway robber Williams rode towards the township of Osawotamie, while Judge Shannon, after drawing the buckboard to the edge of the track, was compelled to proceed homewards on foot.

“The outrage, as we have said, took place late last evening, and Judge Shannon, we understand, did not trouble to inform the County authorities of the circumstance till to-day at noon, after leaving our office. What the motive of the crime may have been we do not worry ourselves to inquire; a crime, an outrage upon justice and order, has been committed; that is all we care to know. If anything fresh happens in this connection we propose to issue a second edition of this paper. Our fellow-citizens may rely upon our energy and watchfulness to keep them posted.

“Just before going to press we learn that Sheriff Johnson was out of town attending to business when Judge Shannon called; but Sub-Sheriff Jarvis informs us that he expects the Sheriff back shortly. It is necessary to add, by way of explanation, that Mr. Jarvis cannot leave the jail unguarded, even for a few hours.”

As may be imagined this item of news awakened my keenest interest. It fitted in with some things that I knew already, and I was curious to learn more. I felt that this was the first act in a drama. Vaguely I remembered some one telling in disconnected phrases why the Sheriff had left Missouri, and come to Kansas:

“‘Twas after a quor’ll with a pardner of his, named Williams, who kicked out.”

Bit by bit the story, to which I had not given much attention when I heard it, so casually, carelessly was it told, recurred to my memory.

“They say as how Williams cut up rough with Johnson, and drawed a knife on him, which Johnson gripped with his left while he pulled trigger.—Williams, I heerd, was in the wrong; I hain’t perhaps got the right end of it; anyhow, you might hev noticed the Sheriff hes lost the little finger off his left hand.—Johnson, they say, got right up and lit out from Pleasant Hill. Perhaps the folk in Mizזורi kinder liked Williams the best of the two; I don’t know. Anyway, Sheriff Johnson’s a square man; his record here proves it. An’ real grit, you bet your life.”

The narrative had made but a slight impression on me at the time; I didn’t know the persons concerned, and had no reason to interest myself in their

fortunes. In those early days, moreover, I was often homesick, and gave myself up readily to dreaming of English scenes and faces. Now the words and drawling intonation came back to me distinctly, and with them the question: Was the robber of Judge Shannon the same Williams who had once been the Sheriff's partner? My first impulse was to hurry into the street and try to find out; but it was the chief part of my duty to stay in the office till six o'clock; besides, the Sheriff was "out of town," and perhaps would not be back that day. The hours dragged to an end at last; my supper was soon finished, and, as night drew down, I hastened along the wooden side-walk of Washington Street towards the Carvell House. This hotel was much too large for the needs of the little town; it contained some fifty bedrooms, of which perhaps half-a-dozen were permanently occupied by "high-toned" citizens, and a billiard-room of gigantic size, in which stood nine tables, as well as the famous bar. The space between the bar, which ran across one end of the room, and the billiard-tables, was the favourite nightly resort of the prominent politicians and gamblers. There, if anywhere, my questions would be answered.

On entering the billiard-room I was struck by the number of men who had come together. Usually only some twenty or thirty were present, half of whom sat smoking and chewing about the bar, while the rest watched a game of billiards or took a "life" in pool. This evening, however, the billiard-tables were covered with their slate-coloured "wraps," while at least a hundred and fifty men were gathered about the open space of glaring light near the bar. I hurried up the room, but as I approached the crowd my steps grew slower, and I became half ashamed of my eager, obtrusive curiosity and excitement. There was a kind of reproof in the lazy, cool glance which one man after another cast upon me, as I went by. Assuming an air of indecision I threaded my way through the chairs uptilted against the sides of the billiard-tables. I had drained a glass of Bourbon whisky before I realized that these apparently careless men were stirred by some emotion which made them more cautious, more silent, more warily on their guard than usual. The gamblers and loafers, too, had taken "back seats" this evening, whilst hard-working men of the farmer class who did not frequent the expensive bar of the Carvell House were to be seen in front. It dawned upon me that the matter was serious, and was being taken seriously.

The silence was broken from time to time by some casual remark of no interest, drawled out in a monotone; every now and then a man invited the

“crowd” to drink with him, and that was all. Yet the moral atmosphere was oppressive, and a vague feeling of discomfort grew upon me. These men “meant business.”

Presently the door on my left opened—Sheriff Johnson came into the room.

“Good evenin’,” he said; and a dozen voices, one after another, answered with “Good evenin’! good evenin’, Sheriff!” A big frontiersman, however, a horse-dealer called Martin, who, I knew, had been on the old vigilance committee, walked from the centre of the group in front of the bar to the Sheriff, and held out his hand with:

“Shake, old man, and name the drink.” The Sheriff took the proffered hand as if mechanically, and turned to the bar with “Whisky—straight.”

Sheriff Johnson was a man of medium height, sturdily built. A broad forehead, and clear, grey-blue eyes that met everything fairly, testified in his favour. The nose, however, was fleshy and snub. The mouth was not to be seen, nor its shape guessed at, so thickly did the brown moustache and beard grow; but the short beard seemed rather to exaggerate than conceal an extravagant out jutting of the lower jaw, that gave a peculiar expression of energy and determination to the face. His manner was unobtrusively quiet and deliberate.

It was an unusual occurrence for Johnson to come at night to the bar-lounge, which was beginning to fall into disrepute among the puritanical or middle-class section of the community. No one, however, seemed to pay any further attention to him, or to remark the unusual cordiality of Martin’s greeting. A quarter of an hour elapsed before anything of note occurred. Then, an elderly man whom I did not know, a farmer, by his dress, drew a copy of the “Kiota Tribune” from his pocket, and, stretching it towards Johnson, asked with a very marked Yankee twang:

“Sheriff, hev yeou read this ‘Tribune’?”

Wheeling half round towards his questioner, the Sheriff replied:

“Yes, sir, I hev.” A pause ensued, which was made significant to me by the fact that the bar-keeper suspended his hand and did not pour out the whisky he had just been asked to supply—a pause during which the two faced each other; it was broken by the farmer saying:

“Ez yeou wer out of town to-day, I allowed yeou might hev missed seein’ it. I reckoned yeou’d come straight hyar before yeou went to hum.”

“No, Crosskey,” rejoined the Sheriff, with slow emphasis; “I went home first and came on hyar to see the boys.”

“Wall,” said Mr. Crosskey, as it seemed to me, half apologetically, “knowin’ yeou I guessed yeou ought to hear the facks,” then, with some suddenness, stretching out his hand, he added, “I hev some way to go, an’ my old woman ‘ull be waitin’ up fer me. Good night, Sheriff.” The hands met while the Sheriff nodded: “Good night, Jim.”

After a few greetings to right and left Mr. Crosskey left the bar. The crowd went on smoking, chewing, and drinking, but the sense of expectancy was still in the air, and the seriousness seemed, if anything, to have increased. Five or ten minutes may have passed when a man named Reid, who had run for the post of Sub-Sheriff the year before, and had failed to beat Johnson’s nominee Jarvis, rose from his chair and asked abruptly:

“Sheriff, do you reckon to take any of us uns with you to-morrow?”

With an indefinable ring of sarcasm in his negligent tone, the Sheriff answered:

“I guess not, Mr. Reid.”

Quickly Reid replied: “Then I reckon there’s no use in us stayin’;” and turning to a small knot of men among whom he had been sitting, he added, “Let’s go, boys!”

The men got up and filed out after their leader without greeting the Sheriff in any way. With the departure of this group the shadow lifted. Those who still remained showed in manner a marked relief, and a moment or two later a man named Morris, whom I knew to be a gambler by profession, called out lightly:

“The crowd and you’ll drink with me, Sheriff, I hope? I want another glass, and then we won’t keep you up any longer, for you ought to have a night’s rest with to-morrow’s work before you.”

The Sheriff smiled assent. Every one moved towards the bar, and conversation became general. Morris was the centre of the company, and he directed the talk jokingly to the account in the “Tribune,” making fun, as it seemed to me, though I did not understand all his allusions, of the editor’s

timidity and pretentiousness. Morris interested and amused me even more than he amused the others; he talked like a man of some intelligence and reading, and listening to him I grew light-hearted and careless, perhaps more careless than usual, for my spirits had been ice-bound in the earlier gloom of the evening.

“Fortunately our County and State authorities can be fully trusted,” some one said.

“Mark that ‘fortunately’, Sheriff,” laughed Morris. “The editor was afraid to mention you alone, so he hitched the State on with you to lighten the load.”

“Ay!” chimed in another of the gamblers, “and the ‘aid and succour of each and every citizen,’ eh, Sheriff, as if you’d take the whole town with you. I guess two or three’ll be enough fer Williams.”

This annoyed me. It appeared to me that Williams had addressed a personal challenge to the Sheriff, and I thought that Johnson should so consider it. Without waiting for the Sheriff to answer, whether in protest or acquiescence, I broke in:

“Two or three would be cowardly. One should go, and one only.” At once I felt rather than saw the Sheriff free himself from the group of men; the next moment he stood opposite to me.

“What was that?” he asked sharply, holding me with keen eye and out-thrust chin—repressed passion in voice and look.

The antagonism of his bearing excited and angered me not a little. I replied:

“I think it would be cowardly to take two or three against a single man. I said one should go, and I say so still.”

“Do you?” he sneered. “I guess you’d go alone, wouldn’t you? to bring Williams in?”

“If I were paid for it I should,” was my heedless retort. As I spoke his face grew white with such passion that I instinctively put up my hands to defend myself, thinking he was about to attack me. The involuntary movement may have seemed boyish to him, for thought came into his eyes, and his face relaxed; moving away he said quietly:

“I’ll set up drinks, boys.”

They grouped themselves about him and drank, leaving me isolated. But this, now my blood was up, only added to the exasperation I felt at his contemptuous treatment, and accordingly I walked to the bar, and as the only unoccupied place was by Johnson's side I went there and said, speaking as coolly as I could:

"Though no one asks me to drink I guess I'll take some whisky, bar-keeper, if you please."

Johnson was standing with his back to me, but when I spoke he looked round, and I saw, or thought I saw, a sort of curiosity in his gaze. I met his eye defiantly. He turned to the others and said, in his ordinary, slow way:

"Wall, good night, boys; I've got to go. It's gittin' late, an' I've had about as much as I want."

Whether he alluded to the drink or to my impertinence I was unable to divine. Without adding a word he left the room amid a chorus of "Good night, Sheriff!" With him went Martin and half-a-dozen more.

I thought I had come out of the matter fairly well until I spoke to some of the men standing near. They answered me, it is true, but in monosyllables, and evidently with unwillingness. In silence I finished my whisky, feeling that every one was against me for some inexplicable cause. I resented this and stayed on. In a quarter of an hour the rest of the crowd had departed, with the exception of Morris and a few of the same kidney.

When I noticed that these gamblers, outlaws by public opinion, held away from me, I became indignant. Addressing myself to Morris, I asked:

"Can you tell me, sir, for you seem to be an educated man, what I have said or done to make you all shun me?"

"I guess so," he answered indifferently. "You took a hand in a game where you weren't wanted. And you tried to come in without ever having paid the *ante*, which is not allowed in any game—at least not in any game played about here."

The allusion seemed plain; I was not only a stranger, but a foreigner; that must be my offence. With a "Good night, sir; good night, barkeeper!" I left the room.

The next morning I went as usual to the office. I may have been seated there about an hour—it was almost eight o'clock—when I heard a knock at the door.

“Come in,” I said, swinging round in the American chair, to find myself face to face with Sheriff Johnson.

“Why, Sheriff, come in!” I exclaimed cheerfully, for I was relieved at seeing him, and so realized more clearly than ever that the unpleasantness of the previous evening had left in me a certain uneasiness. I was eager to show that the incident had no importance:

“Won’t you take a seat? and you’ll have a cigar?—these are not bad.”

“No, thank you,” he answered. “No, I guess I won’t sit nor smoke jest now.” After a pause, he added, “I see you’re studyin’; p’r’aps you’re busy to-day; I won’t disturb you.”

“You don’t disturb me, Sheriff,” I rejoined. “As for studying, there’s not much in it. I seem to prefer dreaming.”

“Wall,” he said, letting his eyes range round the walls furnished with Law Reports bound in yellow calf, “I don’t know, I guess there’s a big lot of readin’ to do before a man gets through with all those.”

“Oh,” I laughed, “the more I read the more clearly I see that law is only a sermon on various texts supplied by common sense.”

“Wall,” he went on slowly, coming a pace or two nearer and speaking with increased seriousness, “I reckon you’ve got all Locock’s business to see after: his clients to talk to; letters to answer, and all that; and when he’s on the drunk I guess he don’t do much. I won’t worry you any more.”

“You don’t worry me,” I replied. “I’ve not had a letter to answer in three days, and not a soul comes here to talk about business or anything else. I sit and dream, and wish I had something to do out there in the sunshine. Your work is better than reading words, words—nothing but words.”

“You ain’t busy; hain’t got anything to do here that might keep you? Nothin’?”

“Not a thing. I’m sick of Blackstone and all Commentaries.”

Suddenly I felt his hand on my shoulder (moving half round in the chair, I had for the moment turned sideways to him), and his voice was surprisingly hard and quick:

“Then I swear you in as a Deputy-Sheriff of the United States, and of this State of Kansas; and I charge you to bring in and deliver at the Sheriff’s house, in this county of Elwood, Tom Williams, alive or dead, and—there’s

your fee, five dollars and twenty-five cents!” and he laid the money on the table.

Before the singular speech was half ended I had swung round facing him, with a fairly accurate understanding of what he meant. But the moment for decision had come with such sharp abruptness, that I still did not realize my position, though I replied defiantly as if accepting the charge:

“I’ve not got a weapon.”

“The boys allowed you mightn’t hev, and so I brought some along. You ken suit your hand.” While speaking he produced two or three revolvers of different sizes, and laid them before me.

Dazed by the rapid progress of the plot, indignant, too, at the trick played upon me, I took up the nearest revolver and looked at it almost without seeing it. The Sheriff seemed to take my gaze for that of an expert’s curiosity.

“It shoots true,” he said meditatively, “plumb true; but it’s too small to drop a man. I guess it wouldn’t stop any one with grit in him.”

My anger would not allow me to consider his advice; I thrust the weapon in my pocket:

“I haven’t got a buggy. How am I to get to Osawotamie?”

“Mine’s hitched up outside. You ken hev it.”

Rising to my feet I said: “Then we can go.”

We had nearly reached the door of the office, when the Sheriff stopped, turned his back upon the door, and looking straight into my eyes said:

“Don’t play foolish. You’ve no call to go. Ef you’re busy, ef you’ve got letters to write, anythin’ to do—I’ll tell the boys you sed so, and that’ll be all; that’ll let you out.”

Half-humorously, as it seemed to me, he added: “You’re young and a tenderfoot. You’d better stick to what you’ve begun upon. That’s the way to do somethin’.—I often think it’s the work chooses us, and we’ve just got to get down and do it.”

“I’ve told you I had nothing to do,” I retorted angrily; “that’s the truth. Perhaps” (sarcastically) “this work chooses me.”

The Sheriff moved away from the door.

On reaching the street I stopped for a moment in utter wonder. At that hour in the morning Washington Street was usually deserted, but now it seemed as if half the men in the town had taken up places round the entrance to Locock's office stairs. Some sat on barrels or boxes tipped up against the shop-front (the next store was kept by a German, who sold fruit and eatables); others stood about in groups or singly; a few were seated on the edge of the side-walk, with their feet in the dust of the street. Right before me and most conspicuous was the gigantic figure of Martin. He was sitting on a small barrel in front of the Sheriff's buggy.

"Good morning," I said in the air, but no one answered me. Mastering my irritation, I went forward to undo the hitching-strap, but Martin, divining my intention, rose and loosened the buckle. As I reached him, he spoke in a low whisper, keeping his back turned to me:

"Shoot off a joke quick. The boys'll let up on you then. It'll be all right. Say something for God's sake!"

The rough sympathy did me good, relaxed the tightness round my heart; the resentment natural to one entrapped left me, and some of my self-confidence returned:

"I never felt less like joking in my life, Martin, and humour can't be produced to order."

He fastened up the hitching-strap, while I gathered the reins together and got into the buggy. When I was fairly seated he stepped to the side of the open vehicle, and, holding out his hand, said, "Good day," adding, as our hands clasped, "Wade in, young un; wade in."

"Good day, Martin. Good day, Sheriff. Good day, boys!"

To my surprise there came a chorus of answering "Good days!" as I drove up the street.

A few hundred yards I went, and then wheeled to the right past the post office, and so on for a quarter of a mile, till I reached the descent from the higher ground, on which the town was built, to the river. There, on my left, on the verge of the slope, stood the Sheriffs house in a lot by itself, with the long, low jail attached to it. Down the hill I went, and across the bridge and out into the open country. I drove rapidly for about five miles—more than halfway to Osawatamie—and then I pulled up, in order to think quietly and make up my mind.

I grasped the situation now in all its details. Courage was the one virtue which these men understood, the only one upon which they prided themselves. I, a stranger, a “tenderfoot,” had questioned the courage of the boldest among them, and this mission was their answer to my insolence. The “boys” had planned the plot; Johnson was not to blame; clearly he wanted to let me out of it; he would have been satisfied there in the office if I had said that I was busy; he did not like to put his work on any one else. And yet he must profit by my going. Were I killed, the whole country would rise against Williams; whereas if I shot Williams, the Sheriff would be relieved of the task. I wondered whether the fact of his having married made any difference to the Sheriff. Possibly—and yet it was not the Sheriff; it was the “boys” who had insisted on giving me the lesson. Public opinion was dead against me. “I had come into a game where I was not wanted, and I had never even paid the *ante*”—that was Morris’s phrase. Of course it was all clear now. I had never given any proof of courage, as most likely all the rest had at some time or other. That was the *ante* Morris meant....

My wilfulness had got me into the scrape; I had only myself to thank. Not alone the Sheriff but Martin would have saved me had I profited by the door of escape which he had tried to open for me. Neither of them wished to push the malice to the point of making me assume the Sheriff’s risk, and Martin at least, and probably the Sheriff also, had taken my quick, half-unconscious words and acts as evidence of reckless determination. If I intended to live in the West I must go through with the matter.

But what nonsense it all was! Why should I chuck away my life in the attempt to bring a desperate ruffian to justice? And who could say that Williams was a ruffian? It was plain that his quarrel with the Sheriff was one of old date and purely personal. He had “stopped” Judge Shannon in order to bring about a duel with the Sheriff. Why should I fight the Sheriff’s duels? Justice, indeed! justice had nothing to do with this affair; I did not even know which man was in the right. Reason led directly to the conclusion that I had better turn the horse’s head northwards, drive as fast and as far as I could, and take the train as soon as possible out of the country. But while I recognized that this was the only sensible decision, I felt that I could not carry it into action. To run away was impossible; my cheeks burned with shame at the thought.

Was I to give my life for a stupid practical joke? “Yes!”—a voice within me answered sharply. “It would be well if a man could always choose the cause for which he risks his life, but it may happen that he ought to throw it away for a reason that seems inadequate.”

“What ought I to do?” I questioned.

“Go on to Osawotamie, arrest Williams, and bring him into Kiota,” replied my other self.

“And if he won’t come?”

“Shoot him—you are charged to deliver him ‘alive or dead’ at the Sheriff’s house. No more thinking, drive straight ahead and act as if you were a representative of the law and Williams a criminal. It has to be done.”

The resolution excited me, I picked up the reins and proceeded. At the next section-line I turned to the right, and ten or fifteen minutes later saw Osawotamie in the distance.

I drew up, laid the reins on the dashboard, and examined the revolver. It was a small four-shooter, with a large bore. To make sure of its efficiency I took out a cartridge; it was quite new. While weighing it in my hand, the Sheriff’s words recurred to me, “It wouldn’t stop any one with grit in him.” What did he mean? I didn’t want to think, so I put the cartridge in again, cocked and replaced the pistol in my right-side jacket pocket, and drove on. Osawotamie consisted of a single street of straggling frame-buildings. After passing half-a-dozen of them I saw, on the right, one which looked to me like a saloon. It was evidently a stopping-place. There were several hitching-posts, and the house boasted instead of a door two green Venetian blinds put upon rollers—the usual sign of a drinking-saloon in the West.

I got out of the buggy slowly and carefully, so as not to shift the position of the revolver, and after hitching up the horse, entered the saloon. Coming out of the glare of the sunshine I could hardly see in the darkened room. In a moment or two my eyes grew accustomed to the dim light, and I went over to the bar, which was on my left. The bar-keeper was sitting down; his head and shoulders alone were visible; I asked him for a lemon squash.

“Anythin’ in it?” he replied, without lifting his eyes.

“No; I’m thirsty and hot.”

“I guessed that was about the figger,” he remarked, getting up leisurely and beginning to mix the drink with his back to me.

I used the opportunity to look round the room. Three steps from me stood a tall man, lazily leaning with his right arm on the bar, his fingers touching a half-filled glass. He seemed to be gazing past me into the void, and thus allowed me to take note of his appearance. In shirt-sleeves, like the bar-keeper, he had a belt on in which were two large revolvers with white ivory handles. His face was prepossessing, with large but not irregular features, bronzed fair skin, hazel eyes, and long brown moustache. He looked strong and was lithe of form, as if he had not done much hard bodily work. There was no one else in the room except a man who appeared to be sleeping at a table in the far corner with his head pillowed on his arms.

As I completed this hasty scrutiny of the room and its inmates, the bar-keeper gave me my squash, and I drank eagerly. The excitement had made me thirsty, for I knew that the crisis must be at hand, but I experienced no other sensation save that my heart was thumping and my throat was dry. Yawning as a sign of indifference (I had resolved to be as deliberate as the Sheriff) I put my hand in my pocket on the revolver. I felt that I could draw it out at once.

I addressed the bar-keeper:

“Say, do you know the folk here in Osawotamie?”

After a pause he replied:

“Most on ‘em, I guess.”

Another pause and a second question:

“Do you know Tom Williams?”

The eyes looked at me with a faint light of surprise in them; they looked away again, and came back with short, half suspicious, half curious glances.

“Maybe you’re a friend of his’n?”

“I don’t know him, but I’d like to meet him.”

“Would you, though?” Turning half round, the bar-keeper took down a bottle and glass, and poured out some whisky, seemingly for his own consumption. Then: “I guess he’s not hard to meet, isn’t Williams, ef you and me mean the same man.”

“I guess we do,” I replied; “Tom Williams is the name.”

“That’s me,” said the tall man who was leaning on the bar near me, “that’s my name.”

“Are you the Williams that stopped Judge Shannon yesterday?”

“I don’t know his name,” came the careless reply, “but I stopped a man in a buck-board.”

Plucking out my revolver, and pointing it low down on his breast, I said:

“I’m sent to arrest you; you must come with me to Kiota.”

Without changing his easy posture, or a muscle of his face, he asked in the same quiet voice:

“What does this mean, anyway? Who sent you to arrest me?”

“Sheriff Johnson,” I answered.

The man started upright, and said, as if amazed, in a quick, loud voice:

“Sheriff Johnson sent *you* to arrest me?”

“Yes,” I retorted, “Sheriff Samuel Johnson swore me in this morning as his deputy, and charged me to bring you into Kiota.”

In a tone of utter astonishment he repeated my words, “Sheriff Samuel Johnson!”

“Yes,” I replied, “Samuel Johnson, Sheriff of Elwood County.”

“See here,” he asked suddenly, fixing me with a look of angry suspicion, “what sort of a man is he? What does he figger like?”

“He’s a little shorter than I am,” I replied curtly, “with a brown beard and bluish eyes—a square-built sort of man.”

“Hell!” There was savage rage and menace in the exclamation.

“You kin put that up!” he added, absorbed once more in thought. I paid no attention to this; I was not going to put the revolver away at his bidding. Presently he asked in his ordinary voice:

“What age man might this Johnson be?”

“About forty or forty-five, I should think.”

“And right off Sam Johnson swore you in and sent you to bring me into Kiota—an’ him Sheriff?”

“Yes,” I replied impatiently, “that’s so.”

“Great God!” he exclaimed, bringing his clenched right hand heavily down on the bar. “Here, Zeke!” turning to the man asleep in the corner, and again he shouted “Zeke!” Then, with a rapid change of manner, and speaking irritably, he said to me:

“Put that thing up, I say.”

The bar-keeper now spoke too: “I guess when Tom sez you kin put it up, you kin. You hain’t got no use fur it.”

The changes of Williams’ tone from wonder to wrath and then to quick resolution showed me that the doubt in him had been laid, and that I had but little to do with the decision at which he had arrived, whatever that decision might be. I understood, too, enough of the Western spirit to know that he would take no unfair advantage of me. I therefore uncocked the revolver and put it back into my pocket. In the meantime Zeke had got up from his resting-place in the corner and had made his way sleepily to the bar. He had taken more to drink than was good for him, though he was not now really drunk.

“Give me and Zeke a glass, Joe,” said Williams; “and this gentleman, too, if he’ll drink with me, and take one yourself with us.”

“No,” replied the bar-keeper sullenly, “I’ll not drink to any damned foolishness. An’ Zeke won’t neither.”

“Oh, yes, he will,” Williams returned persuasively, “and so’ll you, Joe. You aren’t goin’ back on me.”

“No, I’ll be just damned if I am,” said the barkeeper, half-conquered.

“What’ll you take, sir?” Williams asked me.

“The bar-keeper knows my figger,” I answered, half-jestingly, not yet understanding the situation, but convinced that it was turning out better than I had expected.

“And you, Zeke?” he went on.

“The old pizen,” Zeke replied.

“And now, Joe, whisky for you and me—the square bottle,” he continued, with brisk cheerfulness.

In silence the bar-keeper placed the drinks before us. As soon as the glasses were empty Williams spoke again, putting out his hand to Zeke at the same time:

“Good-bye, old man, so long, but saddle up in two hours. Ef I don’t come then, you kin clear; but I guess I’ll be with you.”

“Good-bye, Joe.”

“Good-bye, Tom,” replied the bar-keeper, taking the proffered hand, still half-unwillingly, “if you’re stuck on it; but the game is to wait for ‘em here—anyway that’s how I’d play it.”

A laugh and shake of the head and Williams addressed me:

“Now, sir, I’m ready if you are.” We were walking towards the door, when Zeke broke in:

“Say, Tom, ain’t I to come along?”

“No, Zeke, I’ll play this hand alone,” replied Williams, and two minutes later he and I were seated in the buggy, driving towards Kiota.

We had gone more than a mile before he spoke again. He began very quietly, as if confiding his thoughts to me:

“I don’t want to make no mistake about this business—it ain’t worth while. I’m sure you’re right, and Sheriff Samuel Johnson sent you, but, maybe, ef you was to think you could kinder bring him before me. There might be two of the name, the age, the looks—though it ain’t likely.” Then, as if a sudden inspiration moved him:

“Where did he come from, this Sam Johnson, do you know?”

“I believe he came from Pleasant Hill, Missouri. I’ve heard that he left after a row with his partner, and it seems to me that his partner’s name was Williams. But that you ought to know better than I do. By-the-bye, there is one sign by which Sheriff Johnson can always be recognized; he has lost the little finger of his left hand. They say he caught Williams’ bowie with that hand and shot him with the right. But why he had to leave Missouri I don’t know, if Williams drew first.”

“I’m satisfied now,” said my companion, “but I guess you hain’t got that story correct; maybe you don’t know the cause of it nor how it began; maybe Williams didn’t draw fust; maybe he was in the right all the way through; maybe—but thar!—the first hand don’t decide everythin’. Your Sheriffs the man—that’s enough for me.”

After this no word was spoken for miles. As we drew near the bridge leading into the town of Kiota I remarked half-a-dozen men standing about. Generally the place was deserted, so the fact astonished me a little. But I said nothing. We had scarcely passed over half the length of the bridge, however, when I saw that there were quite twenty men lounging around the Kiota end of it. Before I had time to explain the matter to myself, Williams

spoke: "I guess he's got out all the vigilantes;" and then bitterly: "The boys in old Mizzouri wouldn't believe this ef I told it on him, the dog-goned mean cuss."

We crossed the bridge at a walk (it was forbidden to drive faster over the rickety structure), and toiled up the hill through the bystanders, who did not seem to see us, though I knew several of them. When we turned to the right to reach the gate of the Sheriff's house, there were groups of men on both sides. No one moved from his place; here and there, indeed, one of them went on whittling.

I drew up at the sidewalk, threw down the reins, and jumped out of the buggy to hitch up the horse. My task was done.

I had the hitching-rein loose in my hand, when I became conscious of something unusual behind me. I looked round—it was the stillness that foreruns the storm.

Williams was standing on the side-walk facing the low wooden fence, a revolver in each hand, but both pointing negligently to the ground; the Sheriff had just come down the steps of his house; in his hands also were revolvers; his deputy, Jarvis, was behind him on the stoop.

Williams spoke first:

"Sam Johnson, you sent for me, and I've come."

The Sheriff answered firmly, "I did!"

Their hands went up, and crack! crack! crack! in quick succession, three or four or five reports—I don't know how many. At the first shots the Sheriff fell forward on his face. Williams started to run along the side-walk; the groups of men at the corner, through whom he must pass, closed together; then came another report, and at the same moment he stopped, turned slowly half round, and sank down in a heap like an empty sack.

I hurried to him; he had fallen almost as a tailor sits, but his head was between his knees. I lifted it gently; blood was oozing from a hole in the forehead. The men were about me; I heard them say:

"A derved good shot! Took him in the back of the head. Jarvis kin shoot!"

I rose to my feet. Jarvis was standing inside the fence supported by some one; blood was welling from his bared left shoulder.

“I ain’t much hurt,” he said, “but I guess the Sheriff’s got it bad.”

The men moved on, drawing me with them, through the gate to where the Sheriff lay. Martin turned him over on his back. They opened his shirt, and there on the broad chest were two little blue marks, each in the centre of a small mound of pink flesh.

4TH April, 1891.

*** END OF THE PROJECT GUTENBERG EBOOK THE SHERIFF
AND HIS PARTNER ***

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